STATEMENT OF WORK

ACE Investigator
United States Attorney's Office
Western District of North Carolina

1. PURPOSE

The Department of Justice, United States Attorney's Office (USAO)-Western District of North Carolina has a requirement for an Affirmative Civil Enforcement (ACE) Investigator to assist the Assistant United States Attorney (AUSA) in preparing information/documents to prosecute cases for the Federal Government.

2. BACKGROUND

As an ACE Investigator for the United States Attorney, the Contractor shall assist the AUSA in the strategy to investigate alleged violations of civil law. The Contractor will support Department of Justice (DOJ) initiatives such as the Paycheck Protection Program to identify potential fraudulent payments and the False Claims Act. This will allow for unauthorized funds distributed by the Government to be recovered for the taxpayers of the United States and more efficient use of the funds for the Government. As part of the ACE team, the Contractor will focus on identifying, investigating, and supporting the recovery of taxpayer dollars and the imposition of civil penalties under the False Claims Act and Controlled Substances Act.

The purpose of the work of the Affirmative Civil Enforcement ("ACE") team of the U.S. Attorney's Office in the Western District of North Carolina is primarily to investigate and litigate allegations that entities and individuals violated the False Claims Act by knowingly and improperly claiming funds from federally funded programs such as Medicare, Medicaid, and TRICARE. The ACE team also holds health care providers and others responsible for violations of the Controlled Substances Act and other federal statutes with civil remedies.

The United States Attorney provide general administrative and policy direction in broad mission statements to implement the President's policy's and initiatives. The ACE AUSA will provide guidance and general oversight to the ACE Investigator.

3. SCOPE OF WORK

The Investigator will work closely with the ACE team's attorneys, investigator, and paralegal to initiate and advance ACE matters. Specific duties and responsibilities include:

-Generating new investigations proactively by analyzing financial records, health care claims data, prescribing or dispensing data, and other complex data sets.

-Conducting research regarding potential targets and schemes and evaluating complaints and referrals.

-Developing an investigative plan and strategy in coordination with the attorney and other members of the case team.

-Collecting and assisting in the collection of relevant information through use of various investigative tools, including document demands and witness interviews.

-Drafting demands or requests for data, documents, interrogatories, and testimony; drafting interview outlines and reports of interviews and meetings.

-Reviewing, organizing, and analyzing documents and data collected in an investigation.

-Synthesizing and presenting in written summaries or PowerPoint presentations the key information gathered in an investigation.

-Coordinating with the Criminal Division at the USAO, the Civil of the Department of Justice, and partner agencies, including the Federal Bureau of Investigation and the Department of Health and Human Services Office of Inspector General.

4. BASIC QUALIFICATIONS:

The Contractor shall provide a candidate that possess the following qualifications:

-Minimum of 5-7 years' law enforcement experience planning, conducting, and participating in complex investigations with a minimum five years in complex financial investigations and two years in healthcare fraud investigations.

-Undergraduate degree.

-U.S. Citizenship and the ability to obtain adjudication for the requisite background investigation. Please refer to EOUSA Local Clause Notice of Contractor Personnel Security Clearance Requirements (May 2016).

-Proficiency in the following areas:

- Analyzing health care claims data available from multiple platforms to identify anomalous billing patterns that may be indicative of fraudulent billing. Use data platforms to analyze whether fraud allegations are supported by the billing patterns.

-Drafting request for documents and information through subpoenas or Civil Investigative Demands.

-Working with various groups of stakeholders, including government personnel at multiple agencies and other entities involved in fraud enforcement.

-Working with law enforcement officers, including agents from the offices of the inspectors general of federal agencies, to develop investigative plans, obtain and analyze evidence, interview witnesses, and write interview reports.

-Developing investigative plans and supervising the implementation of those plans by a team of inter-agency investigators.

-Preparing evidence and documentation for use during federal court cases involving allegations of fraud against the defendants, as well experience testifying in federal court cases.

-Utilizing Microsoft Word, Excel, and PowerPoint.

-Understanding of the financial, banking, and health care industries.

5. CONTRACT TYPE:

Labor Hours. Hourly rates shall be fully burdened to include wage, overhead, general and administrative expenses, and profit.

6. PERIOD OF PERFORMANCE

The period of performance will include one (1) base year and four (4) consecutive one-year options as follows:

Base Year:	August 1, 2026 – July 31, 2027
Option Year 1:	August 1, 2027 – July 31, 2028
Option Year 2:	August 1, 2028 – July 31, 2029
Option Year 3:	August 1, 2029 – July 31, 2030
Option Year 4:	August 1, 2030 – July 31, 2031

7. PLACE OF PERFORMANCE

Work is required to be performed within the geographic commuting radius of the Western District of North Carolina; remote performance outside the USAO District office may be authorized and travel may be required as-needed to perform job duties as directed by the USAO. Work is expected to occur regularly held at the following location(s):

227 W. Trade Street
Suite 1650
Charlotte NC 28202

Additionally, Contractor personnel is required to travel as-needed to perform job duties listed in Section 3

8. HOURS OF PERFORMANCE

1480 Hours a year (32 hours per week) are estimated to be necessary to perform the full requirements of the Contract. Core duty hours for the office are 8:30 am – 5:00 pm. Supervising AUSA will determine duty hours to best fit the mission. The Contractor personal shall be available on those rare occasions work is required on evenings, weekends and holidays. No premium pay shall be provided for evenings, weekends and holidays. No overtime is anticipated and shall not be authorized without prior approval from the Contracting Officer.

A list of Federal holidays observed by the Government on which Federal offices will be closed is as follows:

- New Year's Day;
- Martin Luther King's Birthday;
- Presidents' Day;
- Memorial Day;
- Juneteenth Day;
- Independence Day;
- Labor Day;
- Columbus Day;
- Veteran's Day;
- Thanksgiving Day;
- Christmas Day

9. GOVERNMENT FURNISHED SUPPORT

The Government will provide the Contractor personnel with Government Furnished Equipment (GFE) to include a secure laptop and cell phone. Other GFE may be provided as required. Access to Government databases will be made available as needed.

10. POINTS OF CONTACT

Contracting Officers Representative (COR)
George E. Como
Contracting Officers Representative
U.S. Attorney's Office
George.como@usdoj.gov

Contracting Officer (CO)
Perla McKay
Contracting Officer
Executive Office for U.S. Attorneys (EOUSA)
Perla McKay@usdoj.gov

Written communications shall make reference to the Contract number and shall be e-mailed to the CO's email address as noted above.

11. TRAVEL

Travel may be required within the district or occasionally outside the district as-needed to perform job duties as directed by the USAO.

When travel is required, it shall be pre-approved by the Contracting Officer, COR, USA or FAUSA. Local travel (within 50 miles of the USAO worksite office location identified in Section 7) and travel

time will not be reimbursed by the Government. All travel expenses shall be reimbursed in accordance with Federal Travel Regulations (FTR). Contractors are expected to incur expenses prudently. Travel shall be submitted with back-up documentation and receipts provided as required by the FTR

12. TRAINING

The Contractor shall ensure its employees on this Contract are trained on "contract-specific" issues such as Department of Justice ethics, standards of conduct, individual conflict of interest, confidentiality requirements, Department of Justice security requirements, understanding the function of reporting, and the importance of quality control and quality assurance. In addition, Contractor managers shall be educated in the terms and conditions of the Contract

DOJ Ethics - All Contractor personnel must view the Department of Justice ethics presentation entitled, "Pardon the Ethics Interruption," within the first two weeks of employment. The Contractor shall notify the COR upon completion of the task. The COR will maintain a record of completion of this training in the official file.

Cybersecurity Awareness Training (CSAT) – All Contractor personnel having access to a Department Information System shall be required to complete the annual Cybersecurity Awareness Training.

13. SECURITY REQUIREMENTS

Contractor Personnel will be required to undergo requisite security clearance and background investigations as directed by the USAO. The vendor shall pre-screen applicants and only offer candidates who are capable and expected to pass these screenings.

The Government will provide the necessary security forms and instructions to the successful proposed Contractor and coordinate submission to the EOUSA Security Programs Staff.

14. ACCEPTANCE CRITERIA

The Government will assess performance continuously during this Contract. The Government will evaluate the work performed based on the degree to which the Contractor fulfills the requirements identified in the Scope of Work. Assigned tasks are completed according to agreed upon due dates.

If at any time during this Contract the Government finds that the quality of service does not fulfill the requirements identified in the Statement of Work, the Contracting Officer or COR will provide official written notification to the Contractor and require rework.

Replacement of any key personnel is subject to the prior written consent from the Government. The Contractor shall notify the Contracting Officer 14 business days prior to making any changes in key personnel, or not later than 10 business days if the change was not anticipated. The Contractor must demonstrate that the qualifications of the prospective replacement personnel are

equal to, or better than, the qualifications of the personnel being replaced by submitting resumes for approval by the CO's authorized Government representative. All replacement personnel must be qualified to assume the duties and responsibilities of the position, provide the same levels of effort as the replaced staff.

15. INVOICE INSTRUCTIONS

Invoices shall be submitted no more often than monthly to usancw-budget@usa.doj.gov and George.como@usdoj.gov in accordance with FAR 52.212-4(g) Alt. I or GSAM 552.212-4(g) Alt I if this is an Order under a GSA Multiple Award Schedule Contract. All travel reimbursement shall comply with allowable, published Federal rates and shall be in compliance with FTR.
Each invoice shall contain the following information:

- Contractor Name
- Tax Identification Number
- Contractor's Mailing Address
- Telephone Number
- Contract Number
- Date of Invoice
- Invoice Number
- Total Invoice Amount
- Description of services provided, including dates services were rendered

Invoices that are not properly submitted, or that contain incorrect data, will be returned/rejected for revision.

16. CONFIDENTIALITY

The Contractor shall not reveal, divulge, or disseminate any oral or written information obtained as a result of execution of this Contract or performance of work hereunder. All client records are confidential. Improper disclosure of information is a violation of the Privacy Act. The Contractor shall be required to sign a non-disclosure agreement.

17. GOVERNMENT-CONTRACTOR RELATIONSHIP

The Government and the Contractor understand and agree that the support services under this Contract are for non-personal services and the Contractor will not be paid for performing personal service functions.